RAY AND BRIAN ENTERPRISES (PRIVATE) LIMITED
versus
GRAFIELD ENTERPRISES (PRIVATE) LIMITED
and
THE PROVINCIAL MINING DIRECTOR MASHONALAND EAST
and
MINISTER OF MINES AND MINING DEVELOPMENT
and
SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE: 30 December 2025, 21 January 2026 & 27 February 2026 & 3 March 2026

Urgent Court Application-*Declaratur*

L. Uriri with P.D. Mtetwa, for the applicant
E. Mubaiwa with T. Mukwesha, for the 1st respondent

MUSITHU J:

1. This urgent court application for a *declaratur* and consequential relief was placed before the court in terms of r 59(6) of the High Court Rules, 2021. The timelines within which further court papers were to be filed were abridged in terms of the said provision when parties appeared before the court for case management. At the hearing of the matter, the parties counsel opted against making oral submissions and requested the court to determine the matter on the papers. Only the first respondent opposed the application.

Background to the application and the applicant's case

2. On 23 July 2025, this court, per honourable MANYANGADZE J, granted a default judgment in favour of the applicant under HCH 3025/25. The first respondent was aggrieved by the granting of the default judgment. On 20 August 2025, the applicant duly filed an application for the rescission of the judgment under Case No. HCH 4176/25. The first respondent averred that it had not been served with the court application for its eviction, which happened to be the subject of the default judgment. It also averred that it had prospects of success in the eviction matter.

3. On 3 December 2025, this court per the honourable KATIYO J dismissed the application for rescission with no order as to costs. The first respondent was aggrieved by the

outcome and appealed to the Supreme Court against that outcome, under SC 1015/25 on 9 December 2025. On 18 December 2025, the Sheriff wrote to the applicant advising that the execution of HCH 3025/25 had been stayed pending the finalisation of the appeal under SC 1015/25.

4. Although the Sheriff had stayed the execution of HCH 3025/25 pending the determination of the appeal under **SC 1015/25**, the first respondent proceeded to make an application for stay of execution of the same order pending the determination of **SC 1015/25** on 19 December 2025 under **SC 1049/25**. That application was removed from the roll by the Supreme Court on 23 December 2025.

5. According to the applicant, the removal of the urgent chamber application for stay of execution from the roll by the Supreme Court prompted the filing of the present application. The applicant averred that the filing of the application for stay of execution under SC 1049/25, was clear and conclusive proof that the appeal under SC 1015/25 did not suspend the operation of the order under HCH 3025/25, thereby necessitating the need to file that application in the Supreme Court, albeit in the wrong forum.

6. In SC 1049/25, the first respondent sought relief in the main to the effect that the execution of the order *"of the High Court in HCH3025/25 remains stayed in terms of the order of the High Court dated 23 July 2025 pending of the appeal in this court in case number SC 1015/25".* The alternative relief was couched as follows, *"the execution of the High Court judgment in HC3025/25 dated 23 July 2025 be and is hereby stayed pending the outcome of the appeal under case number SC 1015/25."*

7. The applicant averred that both the main and alternative relief were clear proof that contrary to the position taken by the sheriff, the appeal under SC 1015/25 did not suspend the operation of HCH 3025/25. There was therefore no reason for the sheriff to stay its execution pending the finalisation of SC 1015/25.

8. Further, according to the applicant, the urgent chamber application under SC 1049/25 was in itself, a concession by the first respondent that the appeal under SC 1015/25 did not automatically suspend the execution of this court's order under HCH 3025/25.

9. The applicant argued that the appeal under SC 1015/25 did not suspend anything as a matter of law. Being an appeal against the dismissal of the rescission application under HCH4176/25, the appeal in SC 1015/25 could not have suspended the execution of HCH 3025/25. In terms of the common law, the noting of an appeal to the Supreme Court automatically suspended the execution of the judgment appealed against.

10. From that premise, an order granted by the High Court on appeal was the one suspended on appeal. A High Court order dismissing an application could not be suspended pending appeal. This was because a dismissal itself could not be carried into execution. There would be nothing to execute. The appeal under SC 1015/25, being one against a dismissal, could not have suspended the order under HCH 3025/25, or any other order. For that reason, the fourth respondent's determination of 18 December 2025 was wrong. It stopped the execution of HCH 3025/25 to the detriment of the applicant.

11. The applicant also pointed out that an application for rescission was independent of the order granting default judgment. There was no *nexus* between an order granting default judgment and the dismissal of a rescission application, in terms of execution. This was why applications for stay of execution were filed pending the determination of an application for rescission.

12. In the instant matter, there was an interim order staying execution of HCH 3025/25. At the time the fourth respondent made his determination on 18 December 2025, the interim order had lapsed. That lapse could have been cured by reviving it, which never occurred. It meant that the order under HCH 3025/25 remained extant and enforceable. The appeal in SC 1015/25 had nothing to do with those proceedings to warrant a stay. The consequential relief sought was predicated on the *declaratur*. Once the *declaratur* was granted, it followed that the consequential relief was given effect to.

First Respondent's Case

13. Some preliminary points were motivated. The first was that the relief sought was not urgent at all. The risks feared, and on which the application was predicated did not arise for the first time after the dismissal of the application for rescission. They were all in existence on 9 July 2025 when the applicant consented to an order of stay of execution of the default judgment pending the finalisation of the application for rescission. The applicant did not see the need for execution to take place at that stage. Nothing had changed that would render the matter urgent. The applicant had a hand in the fact that execution had not taken place till now. The applicant could still survive without execution until the appeal was decided.

14. The second point was that the application was bad because it was perempted. The applicant was alleged to have accepted before the Supreme Court that the Sheriff made a binding decision which was resolutive of the very question which the applicant was asking the court to answer. The applicant was alleged to have produced the Sheriff's

decision and argued that its effect was to render moot the question whether execution should proceed before the appeal was heard. The first respondent claimed that it agreed with the position resulting in the Supreme Court application being aborted by the consent of the parties. Having taken that position, the applicant could not turn around and advance an argument which was contrary to the basis on which it claimed victory in the Supreme Court.

15. The third point was that the application was incompetent as it was brought on the wrong cause and in the wrong form. The applicant was aggrieved by the Sheriff's decision to suspend execution and wait for the Supreme Court to hear the appeal. Without that decision, the applicant would not have made this application. As an administrative authority, the Sheriff's decision could only be challenged by way of review.

16. The fourth point attacked the application on the basis that it was bad as the founding affidavit did not canvass the requirements for declaratory relief. The affidavit focused on the primary requirement of an interest in the relief sought, but it did not address the additional but plural requirements that triggered the court's discretion to grant that relief.

17. As regards the merits of the application, the first respondent made the following averments. The applicant did not have a right or interest in the execution of the default judgment at any time before the appeal was determined. This was because the applicant allegedly consented to a stay of execution of the default judgment until the finalisation of the parties' dispute concerning the rescission. The appeal was part of the process that would result in the finalisation of that dispute, and until the appeal was decided, the applicant's right to execute was taken away by the order staying execution. It was also averred that the applicant forfeited the right to execute at any rate by submitting itself to the validity of the Sheriff's decision to halt execution until the determination of the appeal.

18. The respondent also averred that the nature of the right on which the application was predicated was non-existent. The contention that the applicant owned the mining location and was therefore entitled to mine it could not ground the application because that was part of the issue for determination by the Supreme Court. The application for rescission contested the default judgment on the basis that the first respondent was on the mine in terms of a subsisting agreement. It was not possible for the applicant to assert a right to possess the mine when that alleged agreement was still subsisting and when the dispute

regarding rescission was yet to reach finality. The issue was still alive, and it undermined the cause of action in the current application.

19. It was also submitted that the application for rescission yielded a consent order staying execution because that application had everything to do with the default judgment. The applicant would not have agreed to stay execution during the rescission proceedings if its view was genuinely that the rescission was alien to the proceedings for default judgment. The intertwined nature of the rescission and the default judgment continued until the appeal was determined because the appeal was merely the second stage of the same dispute that yielded the consent order for stay of execution.

20. The respondent also averred that the issue of execution was governed by the consent order issued by this court. The consent order staying execution was to subsist until the finalisation of the dispute concerning the rescission of the default judgment. The appeal was a continuation of that dispute and part of the legal process that would result in its finalisation. The consent order would therefore be in force until the appeal was concluded and the dispute regarding the rescission of the default judgment thereby finalised.

21. It was further averred that the default judgment was an eviction order whose execution was permanent in nature and effect. Once eviction was carried out, it could not automatically be undone by the mere fact that the appeal was subsequently upheld. There would be need for fresh proceedings to reclaim occupation and apart from the obvious fact that the applicant would contest such proceedings, another real risk was that occupation might by then have changed hands further by the bringing of third parties. The best scenario was one which preserved the status *quo* as it was the less complicated and easiest of all scenarios dealt with.

The Answering Affidavit

22. The answering affidavit raised two preliminary points. The first was that the opposing affidavit was defective because it was undated. It did not state the date in the month of December on which the deponent to the opposing affidavit appeared before a commissioner of oaths and took oath. It was not clear when the opposing affidavit was signed and sworn to.

23. It was further averred that the date on which the oath was administered must appear *ex-facie* the affidavit itself. It mattered not that the date appeared on the date stamp. It had to be inscribed by the Commissioner of Oaths on the date the affidavit was sworn to show

that the deponent physically appeared before the commissioner on the date in question. Further, the date should be inscribed in long hand and not in shorthand, as was done herein.

24. The second point was that the opposing affidavit was accompanied by an invalid board resolution. There was no valid resolution authorising the deponent to the first respondent's opposing affidavit to act for and on its behalf. The same point concerning the validity of the resolution dated 15 August 2025 had been previously raised in HCH 4176/25 and in SC 1049/25. It was upheld by KATIYO J in HCH 4176/25. The first respondent was still using the same invalid resolution to institute and oppose matters relating to the parties.

25. The board resolution was invalid because it conferred the deponent to the opposing affidavit with blanket authority. The resolution was not specific to the litigation which the deponent was authorised to oppose. It gave him power and authority to act for and on behalf of the respondent in any litigation, for as long as it was against the applicant. The applicant argued that there was no way that the respondent's directors would have contemplated that the applicant would institute the present application. The resolution was made more than four months prior to the institution of the present application. It was therefore unclear whether the respondent was aware of the present application or whether the deponent was on a frolic of his own. That anomaly rendered the resolution defective.

Submissions and Analysis on Preliminary Points

26. Several preliminary points were taken by both the applicant and the respondent in the opposing and answering affidavits respectively. Before adverting to the preliminary points raised in the opposing affidavit, the court must determine whether there is a proper opposition in light of the preliminary points raised in the answering affidavit attacking the appropriateness of the opposing affidavit.

Whether the opposing affidavit was defective because it was undated

27. The applicant's contention was that the affidavit was not properly dated. The date was handwritten in the Commissioner of Oath's stamp as *"31-12-25"*. The applicant argued that the date ought to have been inscribed by the Commissioner of Oaths on the date the affidavit was sworn to show that the deponent physically appeared before the commissioner on the date in question.

28. The respondent dismissed the preliminary point as false because the opposing affidavit quoted the date on which it was commissioned. Besides, the authorities cited by the

applicant were all clear that an affidavit must have a date and that date must be inserted by the commissioner's hand. See in this regard *Twin Castle Resources (Pvt) Ltd* v *Paari Mining Syndicate & Ors* HH 153/21, *Mandishayika* v *Sithole* HH 798/15 and *Ariston Management Services Limited* v *Econet Wireless Zimbabwe* SC 123/23

29. The preliminary point is clearly without merit. The above cases dealt with affidavits that bore a computer-generated date or had no date at all. The principle that emerges from the above authorities is that an affidavit must be commissioned in the presence of both the deponent and the commissioner of oaths. For that reason, the affidavit must bear a handwritten date which confirms that it was indeed signed in the presence of both parties.

30. In the present matter, the commissioner of oaths endorsed the date in shorthand in his stamp. That stamp had a provision for the date and the commissioner's signature. The mere fact that the date was inscribed in shorthand does not take away the fact that the commissioner did indeed endorse a date on which the affidavit was commissioned. There being no merit in the preliminary objection, it is hereby dismissed.

Validity of the First Respondent's Resolution

31. The resolution accompanying the affidavit of the deponent to the first respondent's opposing affidavit was impugned on the basis that it conferred blanket authority. It was not specific to the litigation that the deponent was authorised to act for and on behalf of the first respondent.

32. In response, it was submitted on behalf of the first respondent that the deponent to the opposing affidavit was the same deponent to the pleadings in the rescission proceedings and the Supreme Court urgent application. The present matter was built on the basis of what transpired in those matters. It was further submitted that a party was only obligated to produce authority at the point that the existence of such authority was challenged. Authority was challenged in the answering affidavit and the duty to produce it arose at that stage. A resolution speaking directly to the opposing affidavit in this matter was filed at the same time with the first respondent's heads of argument.

33. It is indeed correct that the resolution attached to the opposing affidavit of the deponent, which was signed on 15 August 2025 was not specific to the present litigation. It authorised the deponent to *"sign and execute on behalf of the company all legal documents, depose to affidavits, and appear in Court on behalf of Grafield Enterprises (Private) Ltd in any litigation including the noting of any appeals thereof."* That with

respect, is the kind of resolution that is proscribed by several authorities in this jurisdiction which have endorsed the position that there must be specificity.

34. Be that as it may, on 6 January 2026 the first respondent filed a resolution dated 5 January 2026 in which it confirmed its awareness of the proceedings, and that it had authorised the deponent to depose to the opposing affidavit on its behalf. It further averred that it had ratified the processes that had been undertaken this far towards opposing of the suit. The court determines that by ratifying all the acts that were deployed towards the opposition of the application, the first respondent effectively clothed the deponent with the requisite authority which was required to oppose the litigation. The court further determines that the opposing affidavit is therefore properly before the court and the preliminary point is dismissed for lack of merit.

That the applicant was time barred

35. The preliminary point was raised for the first time in the first respondent's heads of argument. It was to the effect that the applicant was now barred out of its own proceedings. This was because it did not comply with the case management order of 30 December 2025, wherein the parties agreed by consent that the applicant would file and serve its answering affidavit and heads of argument by 2 January 2026. The first respondent was to file and serve its heads by the 5th of January 2026. The matter was then supposed to be argued on 7 January 2026. The applicant's answering affidavit and heads of argument were filed and served on 5 January 2026.

36. The applicant had not responded to this point in its heads of argument because its heads were filed before the first respondent's heads. It meant that I could not dispose of the point without affording the applicant's counsel a chance to respond. Since the parties had elected that the matter be dealt with on the papers, I invited the parties for case management on 27 February 2026 so that they could address the court on this point. The parties counsel appeared before the court virtually on 27 February 2026, and Mr *Mubaiwa* for the first respondent advised the court that the first respondent was abandoning the preliminary point, following engagements with Mr *Uriri* for the applicant. The issue was therefore resolved on that basis.

Urgency

37. It was argued on behalf of the first respondent that the matter could not be urgent now when the applicant was seeking the same execution that it consented to stay some six months back. The decision of the sheriff could not have created a fresh need for

execution. There was no new kind of prejudice that was pleaded to distinguish the situation from what it was when the consent order was made.

38. In response, the applicant argued that the need to act arose on **23 December 2025** when the matter under SC 1049/25 was removed from the roll. It was further submitted that the position was buttressed by the first respondent's own averment in para 3.3 of the opposing affidavit where it stated that:

> "Clearly applicant is unhappy with the Sheriff's decision to halt execution and wait for the Supreme Court to decide the appeal. Without that decision applicant would not be making this application."[1]

39. It was further argued that the first respondent was clear that without the sheriff's decision of 18 December 2025, the present application would not have been made. The applicant further averred that by referring to the sheriff's decision of 18 December 2025, the first respondent was impliedly admitting that the need to act arose on that date. The applicant however insisted that the need to act arose after the Supreme Court disposed of the matter under SC 1049/25. As regards the consequence factor, the applicant submitted that it would continue to suffer irreparable harm in that the respondent remained in occupation of its mining location without a valid tribute agreement.

40. The view of the court is that considerations of urgency in matters of this nature are not entirely similar to urgent chamber applications which must be accompanied by a certificate of urgency attesting to the urgency of the matter. The urgency of an urgent court application does not require certification through a certificate of urgency. It remains in essence an ordinary court application which is accorded expedited hearing because of the exigencies of the matter. The question of urgency of the matter is determined by the court upon a consideration of the circumstances of the matter, with the court enjoying a wide discretion in that regard. The period within which further pleadings are to be filed are truncated by the court in a case management cession which is called by the judge for that purpose.

41. The question of urgency must be determined more importantly with reference to the prejudice which the applicant stands to suffer, if the court does not hear the matter on an urgent basis. The issue of the urgency of the matter and the prejudice that the applicant was exposed to was set out in paragraphs 31 to 34 of the founding affidavit. The applicant claimed to be the lawful owner of the mining claims in dispute, and it

[1] Paragraph 3.3 of the first respondent's opposing affidavit on p 646 of the record

continued to suffer prejudice if a third party remained in occupation without its consent. This court, per MANYANGADZE J found in favour of the applicant and ordered the cancellation of the agreement between the applicant and the first respondent. It also ordered the eviction of the first respondent from the said claims. The question of prejudice was therefore not farfetched.

42. Further, it is common cause that the sheriff suspended execution of HCH 3025/25 pending the hearing of the appeal in SC 1015/25. Despite the undertaking, the first respondent proceeded to make an application for stay of execution under SC 1049/25, pending the determination of SC 1015/25.

43. Although the Sheriff had stayed the execution of HCH 3025/25 pending the determination of the appeal under **SC 1015/25**, the first respondent proceeded to make an application for stay of execution pending the determination of **SC 1015/25** on 19 December 2025 under **SC 1049/25**. The application for stay under SC 1049/25 and the sheriff's decision staying the same execution were clearly tied to each other. Once the Supreme Court disposed of the matter in SC 1049/25, then the sheriff's decision warranted interrogation.

44. I therefore agree with the applicant's contention that the need to act could only be reckoned from the time that the Supreme Court disposed of the application under SC 1049/25 on 23 December 2025. Even if the court were to accept that the need to act should be reckoned from the time of the sheriff's decision on 18 December 2025, the matter would still have remained urgent considering the short space of time that the two respective decisions were made.

45. The court determines that the matter is urgent and the preliminary point is resultantly dismissed.

Peremption

46. The argument was that in the proceedings before the Supreme Court, the applicant placed reliance upon the decision of the sheriff contending that such decision rendered the issue of stay of execution moot. That argument carried the day. The first respondent further argued that the Supreme Court proceedings would not have been rendered moot by an invalid decision as the applicant now contended. That argument on mootness was predicated on the acceptance that the sheriff's decision was valid and resolutive of the dispute. The applicant was not entitled to contest the validity of that same decision having relied upon it to obtain relief from another court.

47. In response, the applicant argued that it was incorrect that by raising a preliminary point on mootness in the Supreme Court, it acquiesced with the decision of the sheriff. The point was raised on the basis that the Supreme Court had no jurisdiction to deal with the application before it as it had been overtaken by events. The courts generally did not want to pronounce themselves on matters that were moot. The applicant also averred that it had made its position clear through the letter of 12 December 2025 that the decision of the Sheriff was wrong as it stayed the execution of HCH 3025/25 pending the determination of SC 1015/25 which had nothing to do with those proceedings.

48. The applicant further averred that it had genuine intention to have the decision of the sheriff set aside, but it ended up not filing its application for leave to execute pending appeal which it had prepared after it was served with the application in SC 1049/25 on the same day the application for leave was to be filed.

49. The principle on peremption was described in *Dabner v South African Railways and Harbours*[2] where INNES CJ stated:

> "The rule with regard to peremption is well settled and has been enunciated on several occasions by this Court. If the conduct of an unsuccessful litigant is such as to point indubitably and necessarily to the conclusion that he does not intend to attack the judgment, then he is held to have acquiesced in it. But the conduct relied upon must be unequivocal and must be inconsistent with Sentraale Ko-Operatiewe Graan any intention to appeal. And the onus of establishing that position is upon the party alleging it. In doubtful cases acquiescence, like waiver, must be held non-proven."

50. In *Gentiruco A.G. v Firestone S.A. (Pvt) Ltd*[3] the court also made the point that the right of an unsuccessful litigant to appeal against an adverse judgment or order is said to be perempted if he, by unequivocal conduct inconsistent with an intention to appeal shows that he acquiesces in the judgment or order.

51. From my reading of the above *dicta*, the doctrine of peremption applies to court judgments or orders whose effect is final unless challenged by the unsuccessful party. The applicant could not have acquiesced to the decision of the sheriff, which was not a judgment or order of court. Further, the conduct of the applicant, when considered in the context of its letter of 12 December 2025 to the sheriff, showed that it had always maintained the view that the appeal to the Supreme Court could not suspend execution of the judgment. That letter read in part as follows:

> "We have noted the developments in this case and wish to address any concerns your office may have regarding execution. An existing court order remains in effect and is

[2] 1920 AD 583 at 594
[3] 1972 (1) AD 589 @ 600 A-B

> both due and enforceable. The rescission application was unsuccessful, and it had no bearing on the execution of the order of the court. The interim order staying execution has also lapsed and such lapse can only be cured by reviving it. In light of the fact that the stay has not been revived, and the appeal to the Supreme Court does not suspend the execution of the judgment there is nothing presently hindering execution. Accordingly, the court order remains extant and enforceable. We therefore instruct you to proceed with the execution of the order."[4]

52. The letter of 12 December 2025, which was written a few days before the sheriff's decision of 18 December 2025, made it clear that the dismissal of the application for rescission had no bearing on the execution of the order of the court. The interim order had also lapsed and needed to be revived if execution was to be stayed. The court determines that the preliminary point is devoid of merit and it is hereby dismissed.

That the application was brought on the wrong cause and in the wrong form.

53. The first respondent's argument was that the applicant ought to have come by way of review in terms of r 62 of the High Court rules or in terms of sections 4 and 6 of the Administrative Justice Act [*Chapter 7:01*]. This was because the application was concerned with the legality of the decision of the sheriff. The pleaded cause of action was a reviewable one.

54. In response, the applicant argued that the application could not have been brought as one for review because it did not raise any reviewable grounds. The applicant challenged the decision itself and not the manner in which that decision was reached. The applicant did not challenge the way the sheriff arrived at his decision. It challenged the substantive decision itself.

55. The court finds no merit in the preliminary point. It is clear to the court that the application attacks the substantive decision by the sheriff and not the manner in which that decision was arrived at. A review is concerned with the validity of the decision-making process itself and not whether the decision itself is substantively correct. The preliminary point is accordingly dismissed for lack of merit.

Failure to canvass all the requirements of a declaratur

56. It was submitted that the requirements for the granting of a *declaratur* were two fold, that is whether an applicant had an interest and whether the matter was one in which the court could use its discretion in favour of granting the application. The first respondent further submitted that the entire founding affidavit did not address the second requirement. It did

[4] See the letter on p 517 of the record.

not canvass matters that made it necessary for the court to exercise its discretion in favour of granting the relief sought.

57. In response, it was submitted on behalf of the applicant that the requirement for the granting of a *declaratur* under s 14 of the High Court Act [*Chapter 7:06*], was that an applicant must be an interested part in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. The interest must concern an existing, future or contingent right.

58. Section 14 of the High Court Act in terms of which the present application was launched states as follows:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation notwithstanding that such person cannot claim any relief consequential upon such determination"

59. The requirements of a *declaratur* are therefore statutorily provided. These were alluded to in para 15 of the applicant's founding affidavit. The nature of the applicant's interest and the rights it sought to pursue were clearly outlined. The court therefore finds no merit in the preliminary point.

Submissions on the merits

60. The applicant submitted that its existing rights could be prejudicially affected by the stay of execution made by the sheriff. For the rights to be determined, the applicant bore the onus to show that the appeal under SC 1015/25 in respect of the cause under HCH 4176/25, dismissing the first respondent's application for rescission of the default judgment did not stay the execution of the default judgment in HCH 3025/25.

61. The respondent on the other hand submitted that the parties entered a consent order before KATIYO J at which they agreed that there should be no execution of the default judgment until the finalisation of their dispute in respect of the rescission. It was further submitted that whilst the application for rescission was dismissed, such dismissal did not yield finality of the dispute. There was an appeal against the dismissal of the application for rescission. The appeal meant that the dispute of the parties concerning the rescission was still alive and still to achieve finality. An appeal was part of the process of resolving disputes, and it was only when the Supreme Court had rendered judgment on appeal that the finality contemplated by the parties in their consent order would be achieved. It was

further argued that the application for default judgment could not exist without the application for rescission.

Analysis of the merits

62. The dispute before the court revolves around the default order granted in favour of the applicant against the first respondent by MANYANGADZE J on 23 July 2025 in HCH 3025/25. The first respondent herein was the first respondent in that matter. The PMD Mashonaland East was the second respondent and the Minister of Mines and Mining Development the third respondent. The court ordered the cancellation of the agreement between the applicant, and the first respondent dated 27 October 2022. It also ordered that the first respondent and all those claiming occupation through it must vacate the mining locations/claims known as Ayerum, under registration numbers 44954 and 44956 situated at PaGejo RaRubi Farm in Goromonzi District, Mashonaland East Province. The first respondent was also ordered to pay the applicant's costs of suit on the attorney and client scale.

63. It is common cause that at the time that KATIYO J was seized with the application for rescission of the default judgment, he had ordered that neither party should carry out mining activities until the finalisation of the rescission application under HCH 4176/25. My understanding of the order by KATIYO J is that he suspended all activities at the mining locations pending the determination of the application for rescission that was before him. That matter was finalised with a dismissal of the application.

64. The first respondent appealed against the KATIYO J judgment under SC 1015/25 on 9 December 2025. On 18 December 2025, the sheriff wrote to the applicant advising that the execution of the order by MANYANGADZE J under HCH 3025/25 would be stayed pending the determination of the appeal under SC 1015/25. On 19 December 2025, the first respondent applied for stay of the execution of the order by MANYANGADZE J under SC 1049/25, pending the determination of the appeal under SC 1015/25.

65. The court agrees with the applicant's submission that the appeal under SC 1015/25 did not have the effect of staying execution of the order under by MANYANGADZE J under HCH 3025/25. Had that been the case, there would have been no reason why the application for stay of execution of the same order would be made under SC 1049/25. The first respondent was aware that following the dismissal of the application for

rescission by KATIYO J, the order that had been granted by the learned judge suspending mining activities pending his hearing of the application for rescission, had lapsed following the dismissal of the application for rescission.

66. Further, the application for stay of execution under SC 1049/25 was filed in the Supreme Court after the sheriff had made an undertaking through the letter of 18 December 2025, that execution of the order in HCH 3025/25 would be suspended pending the determination of the appeal under SC 1015/25. If indeed the appeal under SC 1015/25 had the effect of suspending execution of the order under HCH 3025/25, then there would have been no need for the sheriff to make that undertaking in the letter of 18 December 2025. There would have been no point in applying for stay of execution under SC 1049/25.

67. It is common cause that under the common law, an appeal suspends execution of the decision or order that is being appealed against. It is only an order or judgment of the court that has the effect of being carried into execution that is suspended pending the determination of the appeal. What was dismissed by KATIYO J was the application for rescission of the default judgment. A dismissal of an application for rescission of judgment is not the kind of order or judgment that can be carried into execution.

68. What would have been carried into execution is the original order which was granted by MANYANGADZE J under HCH 3025/25. Ordinarily an application for rescission of a default judgment is filed simultaneously with an application for stay of execution of the order that the applicant wants rescinded. This is because an application for rescission of that order cannot suspend execution of that order without a concomitant application for stay of execution. For that reason, the appeal against the dismissal of the application for rescission, which was filed under SC 1015/25 did not have the effect of suspending execution of the order under HCH 3025/25, because a dismissal of an application cannot be carried into execution.

69. The order by MANYANGADZE J could only have been suspended through an application for stay of execution of that order in the court that granted that order. The first respondent had made the correct decision to approach the court for the stay of execution of the order by MANYANGADZE J. This was because the first respondent was aware that the appeal under SC 1015/25 did not have the effect of staying execution. Further, in approaching the Supreme Court for stay of execution under SC 1049/25, the first respondent was also aware that the reprieve extended by KATIYO J when he was

seized with the application for rescission, was only temporary. It was only for the duration that the learned judge was seized with the rescission application.

70. Further, as observed by the applicant, the order by KATIYO J issued under HCH 4195/25 only stayed the carrying out of mining operations and did not extend to the stay of eviction of the first respondent from the mining claims. Following the dismissal of the application for rescission of the default judgment, the first respondent, as already observed should have sought the extension of the order by KATIYO J, if it was convinced that the said order had the effect of staying execution of the order by MANYANGADZE J. Because of the limited scope of the order by KATIYO J, the first respondent ought to have approached this court for the stay of the said order by MANYANGADZE J, it being an order of this court. As the court that granted the order in default, this court has the power to regulate its own processes by staying execution of its order pending the determination of an appeal against the same order.

71. The decision by the sheriff of 18 December 2025, staying execution of the order in HCH 3025/25 pending the determination of the appeal in SC 1015/25 was therefore erroneous. As already observed, the noting of the appeal in SC 1015/25 did not suspend execution of the order that the Sheriff sought to stay through the letter of 18 December 2025. The appeal was concerned with the dismissal of the application for rescission. It was not concerned with a refusal by the court to stay of execution of the default judgment. Execution of the default judgment could only be stayed through an order of this court and not through a letter from the office of the sheriff.

72. For the above reasons, the court determines that there is merit in the applicant's claim. The first respondent's appeal to the Supreme Court under SC 1015/25, did not have the effect of suspending the execution of the order by MANYANGADZE J. The first respondent ought to have sought the stay of execution of that order from this honourable court. The decision by the sheriff to stay execution pending the determination of the appeal in SC 1015/25, predicated as it was, on the filing and pendency of that appeal at the Supreme Court was irregular. The applicant is therefore entitled to the relief that it seeks herein.

Costs of suit

73. The court was urged to make an award of costs on the legal practitioner and own client scale in the event of it finding in favour of the applicant. Costs follow the event. While the applicant is undoubtedly entitled to costs of suit as the successful party, no

justification was made for an award of costs on the punitive scale of legal practitioner and client. Costs will be awarded on the ordinary scale.

Resultantly, it is declared that:

1. The noting of an appeal under SC 1015/25 against the decision of the court in HCH 4176/25, dismissing the first respondent's application for rescission of a default judgment, does not stay execution of the default judgment handed down under HCH 3025/25.
2. Consequently, the Sheriff's decision communicated on 18 December 2025 is hereby set aside for being irregular.
3. The first respondent shall bear the applicant's costs of suit on the ordinary scale.

F.T. Mangiza Attorneys, Legal Practitioners for the applicant
Wellington Attorneys, Legal Practitioners for the 1st respondent

MUSITHU J: ……